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Benefits scandal is a human rights violation, says Amnesty International

News

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The benefits scandal in the Netherlands is a violation of human rights with a high risk of recurrence. Also in other countries.

This is stated in the report released today , '[Xenophobic machines – Discrimination through unregulated use of algorithms in the Dutch childcare benefits scandal](https://www.amnesty.nl/content/uploads/2021/10/20211014_FINAL_Xenophobic-Machines.pdf?x69508)' .
(https://www.amnesty.nl/content/uploads/2021/10/20211014_FINAL_Xenophobic-Machines.pdf?x69508) .

This is the first time a human rights analysis has been conducted of the algorithms involved in the benefits scandal. The [report \(https://www.amnesty.nl/content/uploads/2021/10/20211014_FINAL_Xenophobic-Machines.pdf?x69508\)](https://www.amnesty.nl/content/uploads/2021/10/20211014_FINAL_Xenophobic-Machines.pdf?x69508) focuses on a small sub-component of the benefits scandal. The conclusion of the study is that the algorithms used by the Tax and Customs Administration to verify erroneous childcare benefit applications and fraud led to ethnic profiling. [Ethnic profiling \(https://www.amnesty.nl/wat-we-doen/themas/discriminatie/etnisch-profileren\)](https://www.amnesty.nl/wat-we-doen/themas/discriminatie/etnisch-profileren) is a form of discrimination and is therefore in violation of human rights.

In addition, there is discrimination based on social class, as people from lower social classes have been hit particularly hard. The conclusions of the Amnesty International study add depth to previous studies, such as that of the Dutch Data Protection Authority (AP).

Victims have been indicating for years that discrimination in the benefits scandal is broader than the government acknowledges.

Discrimination on the grounds of ethnicity

Organizations involved in social services are increasingly automating their work processes, with the aim of detecting fraud, among other things. The Netherlands is one of the global leaders in this field.

When checking childcare allowance applications for accuracy and fraud, the Tax and Customs Administration used a risk model. This model utilized multiple risk factors, including not possessing Dutch nationality. People without Dutch nationality ultimately had a greater chance of being (incorrectly) labeled as fraudsters. The assumption that certain population groups are more inclined to commit fraud points to existing biases and unequal treatment by the Tax and Customs Administration.

Repetition is lurking.

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The Dutch government states that it has taken measures to prevent a recurrence of the benefits scandal. Amnesty has analyzed these measures and concludes that they fall short on all fronts: for instance, civil servants are not required to assess human rights risks in advance, oversight of algorithms is substandard, and government institutions are allowed to keep the use and operation of algorithms secret.

Regulate algorithms

Amnesty is not opposed to the use of algorithms. However, the protection of human rights when using them must improve. Therefore, Amnesty will continue to conduct research and campaign in the coming years to put an end to human rights violations related to algorithmic systems.

Amnesty International calls on governments worldwide to establish a framework that prevents human rights violations in the use of algorithmic decision-making systems and that sets up monitoring and oversight mechanisms. Those responsible for violations must also be held accountable and victims compensated. In the Netherlands, this means that victims of discrimination using the risk model must also be compensated.

[Read more about our work in the field of technology and human rights \(https://www.amnesty.nl/wat-we-doen/tech-en-mensenrechten\)](https://www.amnesty.nl/wat-we-doen/tech-en-mensenrechten) .

[And read the English message ↗ \(https://www.amnesty.org/en/documents/eur35/4686/2021/en/\)](https://www.amnesty.org/en/documents/eur35/4686/2021/en/) .

More information

 [Xenophobic machines – Discrimination through unregulated use of algorithms in the Dutch childcare benefits scandal \(https://www.amnesty.nl/content/uploads/2021/10/20211014_FINAL_Xenophobic-Machines.pdf?x69508\)](https://www.amnesty.nl/content/uploads/2021/10/20211014_FINAL_Xenophobic-Machines.pdf?x69508)

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 [Report in Dutch \(https://www.amnesty.nl/content/uploads/2021/10/NL_Xenofobe-Machines_Amnesty-International_EUR-35_4686_2021.pdf?x69508\)](https://www.amnesty.nl/content/uploads/2021/10/NL_Xenofobe-Machines_Amnesty-International_EUR-35_4686_2021.pdf?x69508)

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